

SENATE No. 319

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to access for after school and out-of-school time programs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>5/7/2025</i>

SENATE No. 319

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 319) of Brendan P. Crighton for legislation to access after school and out-of-school time programs. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 255 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to access for after school and out-of-school time programs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 7 of the General Laws is hereby amended by adding the following section:-

2 Section 63. (a) There shall be established an After School and Out-of-School Time
3 Opportunity Fund. The program shall be administered by the department of elementary and
4 secondary education. A qualified program eligible for funding is any out-of-school time program
5 that serves school age children and youth and is licensed by the department of early education
6 and care, or is license-exempt.

7 (b) The purpose of the fund shall be to support the establishment of and increase access to
8 and the quality of afterschool and out of school time programs. The fund shall consist of all
9 moneys received by the commonwealth equal to 3 percent of the receipts of the sales price of
10 purchases received by all marijuana retailers as provided for in chapter 64N as excises paid to the

11 commissioner of revenue. Such amounts in the fund shall be administered by the department of
12 elementary and secondary education.

13 (c) The department shall promulgate rules and regulations necessary to implement the
14 provisions of this section.